

Jugal Kishor v. State of U.P.

High Court of Judicature at Allahabad · Division Bench · 8 August 2019 · WRIT - C No. - 26113 of 2019 · **Writ disposed; voltage and estimated-cost dispute relegated to CGRF.**

HEADNOTE

An existing consumer seeking mandamus for accurate voltage, after the licensee had already given an estimated cost for an additional or proper line, must take the dispute to the Consumer Grievance Redressal Forum under clause 7.10 of the U.P. Electricity Supply Code, 2005. Continuous voltage variation is a supply-related matter under clause 7.7.1. A technical cost assessment is not judicially reviewed in writ without technical aid; disputed facts are for the Forum. Two weeks to object; Forum to decide on merits by a speaking order within four weeks.

FACTUAL SUMMARY

Jugal Kishor, an existing consumer, sought mandamus for supply at accurate voltage or a direction to decide his 8 July 2019 representation, alleging a continuous voltage problem. Records showed the licensee had already given him an estimated cost for an additional or proper line to ensure accurate voltage. The Power Corporation said he should pay that estimate or, if aggrieved, approach the Consumer Grievance Redressal Forum under clause 7.10 of the U.P. Electricity Supply Code, 2005. Counsel did not dispute the forum.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::7.7.1

voltage variation as a supply-related CGRF matter

HOLDING

A complaint of continuous voltage variation, including where the licensee has demanded estimated cost for an additional or proper line to supply electricity at accurate voltage, stands covered by clause 7.7.1 of the U.P. Electricity Supply Code, 2005 (supply-related matters, interruption or failure of supply, voltage variation), and is not to be decided on writ mandamus. ¶ 8-9

HOLDING-UNIT · UP-2005::7.10

CGRF route for estimated line cost and voltage complaints

HOLDING

The Consumer Grievance Redressal Forum under clause 7.10 is the appropriate forum for a dispute over the estimated cost demanded to provide an additional or proper line for accurate voltage. A cost assessment made with the licensee's technical experts cannot be judicially reviewed in writ without technical aid, and disputed questions of fact are not to be tried on evidence in the High Court. The petitioner was permitted two weeks to object before the Forum, which was directed to dispose of the objection on merits by a reasoned speaking order within a further four weeks. ¶ 7-10

FLAG Court referred to sub-clauses II and III of clause 7.10 but reproduced text numbered (i) and (ii); quoted (ii) is complaint to the licensee, while the order directs the CGRF.

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — WHETHER THE ESTIMATED COST FOR THE ADDITIONAL OR PROPER LINE WAS REASONABLE, AND WHETHER VOLTAGE SUPPLY WAS IN FACT INADEQUATE

Merits left to the Consumer Grievance Redressal Forum. ¶ 9-10

